

Line 5

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF SANTA CLARA**

BART ZIEGENHAGEN, KENYA ZIEGENHAGEN,

Plaintiffs,

v.

MARIE A. HITCHCOCK, Trustee of John C.
Hitchcock Family Trust; and DOES 1-10,
inclusive

Defendants.

Case No. 23CV409783

**ORDER DENYING MOTION TO
COMPEL**

Plaintiff's motion to compel responses to special interrogatories came on for hearing before the Court on April 3, 2025. Pursuant to California Rule of Court 3.1308, the Court issued its tentative ruling on April 2, 2025.

I. Alleged Facts

According to the Complaint, Plaintiffs have been residential tenants at 115 Roosevelt Avenue, San Martin, California 95046 (the "Premises") under a written lease since February 29, 2016. (Complaint, ¶ 1.) Hitchcock is the Trustee of the John C. Hitchcock Family Trust (the "Trust"). (*Id.*) The Trust represented to Plaintiffs that the Premises would be ready for occupancy by the commencement date of the lease. (Complaint, ¶ 4.) Based on those representations, Plaintiffs decided to rent the Premises and made plans to move in. (Complaint, ¶ 5.) The Premises were not

1 ready for occupancy and the Trust made the representations to trick Plaintiffs into paying top dollar
2 rent and committing to the lease. (Complaint, ¶¶ 6-7.)

3 Three months after Plaintiffs moved in, the Trust began complaining that Plaintiffs'
4 improvements to the Premises were unauthorized. (Complaint, ¶ 9.) Plaintiffs had exclusive use of
5 the entire Premises, however, the Trust habitually trespassed, despite Plaintiffs' request that it not.
6 (Complaint, ¶ 10.) The Trust brought guests to the Premises and then livestock, which were left for
7 several months. (Complaint, ¶ 11.) The Trust also dug a ditch in the back yard, which left an open
8 trench. (Complaint, ¶ 12.) It also used Plaintiffs' water, without compensation. (*Id.*) Plaintiffs'
9 ongoing complaints about the Trust resulted in retaliation, harassment, threats, eviction notices,
10 and ultimately, the Trust filed an unlawful detainer action, which is currently pending. (Complaint,
11 ¶ 13.)

12 Plaintiffs initiated this action on January 11, 2023, asserting: (1) trespass; (2) invasion of
13 privacy; (3) deceit (4) nuisance; (5) retaliation; and (6) breach of contract.

14 Plaintiff has been trying, without success, to properly serve Defendant with the summons
15 and complaint for more than two years. The Court granted defendant's motion to quash the first
16 service attempt "because it is unclear from the summons whether Hitchcock was sued in her
17 representative capacity, individual capacity, or both," thus, the summons was defective. (June 28,
18 2023 Order Granting Motion to Quash.)

19 Plaintiff filed an amended complaint and received an amended summons. That summons
20 identifies the defendants as: "Marie A. Hitchcock, Trustee or her successors of the Marie A. Hitchcock
21 Marital Trust created under the Hitchcock Living Trust dated April 24, 2000 dba "The John C.
22 Hitchcock Family Trust" and "John C. Hitchcock Family Trust created under the Hitchcock Living
23 Trust Dated April 24, 2000" and DOES 1-10, inclusive.

24 Plaintiffs then attempted service through publication. Defendant again moved to quash.
25 Plaintiffs did not oppose the motion, and, once a defendant comes forward with evidence to
26 challenge proper service, the burden shifts to the plaintiff to demonstrate service was proper.
27 (*Sheard v. Superior Court* (1974) 40 Cal.App.3d 207, 211 ("where a defendant properly moves to
28 quash service of summons the burden is on the plaintiff to prove facts requisite to the effective

1 service”); *Ziller Electronics Lab Gmbh v. Superior Court* (1988) 206 Cal.App.3d 1222, 1232-33
2 (burden is on the plaintiff to demonstrate by a preponderance of competent evidence that all
3 jurisdictional criteria are met).) Having failed to oppose the motion, Plaintiffs failed to meet this
4 burden, and the Court granted the motion to quash in its tentative ruling. Plaintiffs then failed to
5 notify Defendant of their intent to contest that ruling, thus the Court was obligated to adopt it at the
6 hearing which it did formally by order dated September 23, 2024. The last sentence of that order
7 states: “Defendant’s motion is GRANTED, and the complaint remains unserved.”

8 After receiving that order by U.S. mail sent on September 26, 2024, Plaintiffs served special
9 interrogatories on Defendant’s counsel by email on October 3, 2024, which “discovery was strictly
10 limited to issues concerning Defendants’ location, for purposes of serving Defendants”. (Declaration
11 of Bart Ziegenhagen, ¶2.) Defendants informed Plaintiffs they would not respond to the discovery
12 because the complaint and summons had not been served as of October 3, 2024, and Defendants
13 had not appeared in the case.

14 Plaintiffs now move to compel responses to those special interrogatories and for sanctions.
15 Defendant “specially appears” to oppose the motion and to obtain sanctions against Plaintiffs and
16 their attorney Ken Carlson (Bar #93602).

17 **II. Propriety of Pre-Service Discovery**

18 Code of Civil Procedure section 2030.020 provides, in relevant part:

19 (b) A plaintiff may propound interrogatories to a party without leave
20 of court at any time that is 10 days after the service of the summons
21 on, or appearance by, that party, whichever occurs first.

22 ...

23 (d) Notwithstanding subdivisions (b) and (c), on motion with or
24 without notice, the court, for good cause shown, may grant leave to a
25 plaintiff to propound interrogatories at an earlier time.

26 (Code Civ. Proc., § 2030.020.)

27 As of October 3, 2024 when the special interrogatories were served, Plaintiffs had not served
28 the summons, Defendants had not appeared, and Plaintiffs had not sought leave of Court to serve

1 the special interrogatories. Plaintiffs nevertheless argue serving interrogatories was proper under
2 *1880 Corp. v. Superior Court of City and County of San Francisco* (1962) 57 Cal.2d 840, 842-843; *In re*
3 *Automobile Antitrust Cases I & II* (2005) 135 Cal.App.4th 100, 127; and *Preciado v. Freightliner*
4 *Custom Chassis Corporation* (2023) 87 Cal.App.5th 964, 972, which Plaintiff argues “establish an
5 *interpretation, extension or exception* to Code of Civil Procedure §2030.020.” (Reply, p.2.) These
6 cases do not support Plaintiffs’ decision to serve discovery before serving the amended summons
7 and complaint without leave of court.

8 *Preciado v. Freightliner Custom Chassis Corporation* stands for the noncontroversial legal
9 proposition that “A trial court has the discretion to continue the hearing on a motion to quash
10 service of summons for lack of personal jurisdiction to allow the plaintiff to conduct discovery on
11 jurisdictional issues.” (*HealthMarkets, Inc. v. Superior Court* (2009) 171 Cal.App.4th 1160, 1173 [90
12 Cal. Rptr. 3d 527].) ‘In order to prevail on a motion for a continuance for jurisdictional discovery,
13 the plaintiff should demonstrate that discovery is likely to lead to the production of evidence of facts
14 establishing jurisdiction.’ (*In re Automobile Antitrust Cases I & II* (2005) 135 Cal.App.4th 100, 127
15 (*Automobile Antitrust Cases*).)” (*Preciado v. Freightliner Custom Chassis Corp.* (2023) 87 Cal.App.5th
16 964.)

17 Similarly, *In re Automobile Antitrust Cases I & II* holds:

18 A plaintiff attempting to assert jurisdiction over a nonresident defendant
19 is entitled to an opportunity to conduct discovery of the jurisdictional
20 facts necessary to sustain its burden of proof. (*Magnecomp Corp. v.*
21 *Athene Co., supra*, 209 Cal. App. 3d at p. 533.) In order to prevail on a
22 motion for a continuance for jurisdictional discovery, the plaintiff should
23 demonstrate that discovery is likely to lead to the production of evidence
24 of facts establishing jurisdiction. (See, e.g., *Beckman v. Thompson* (1992)
25 4 Cal.App.4th 481, 486–487 [6 Cal. Rptr. 2d 60].) Plaintiffs in this matter
26 did not do so. . . Even when the underlying complaint alleges a
27 conspiracy, the plaintiff must still offer evidence tending to support the
28 existence of personal jurisdiction over each named nonresident

defendant. (See *Kaiser, supra*, 86 Cal. App. 3d at p. 901; see pt. IV.A.3., *ante*.)

(*In re Automobile Antitrust Cases I & II* (2005) 135 Cal.App.4th 100.)

And *1880 Corp. v. Superior Court of City and County of San Francisco* (1962) 57 Cal.2d 840, 842-843 teaches:

Interrogatories may be served upon any adverse party at any time after service of the summons or the appearance of such adverse party and without leave of court, except that, if service of interrogatories is made by the plaintiff within 10 days after such service of summons or appearance, leave of court granted with or without notice must first be obtained.

...

The word "appearance," set forth without qualification, is not limited to a general appearance, and Atlas, the moving party, is obviously an "adverse party" with respect to the motion to quash.

(*1880 Corp. v. Superior Court of San Francisco* (1962) 57 Cal.2d 840 (emphasis added).)

Plaintiffs are simply wrong that these cases "establish an interpretation, extension or exception to Code of Civil Procedure §2030.020." (Reply, p.2.) In every instance, the defendants in these cases were served with the summons and complaint and were contesting *personal jurisdiction*. Plaintiffs indisputably did not serve Defendants with the amended summons and complaint before serving the special interrogatories; there was thus no motion to quash pending, and no basis for *jurisdictional* discovery. Even now that a motion to quash is pending, there is no basis for jurisdictional discovery that was at issue in the above-cited cases. Plaintiffs served discovery to find Defendants' location so they could serve the amended summons and complaint. That is not jurisdictional discovery.

Plaintiffs' motion to compel is accordingly DENIED.

III. Whether Ken Carlson Should be Sanctioned

Plaintiffs are appearing in pro per; they have no listed counsel of record. However, attorney

1 Ken Carlson drafted and served the special interrogatories, the motion to compel and the reply.
2 Defendants seek \$2,475 in sanctions against Ken Carlson and Plaintiffs jointly and severally to
3 reimburse Defendants for the fees incurred spending 9.9 hours attempting to meet and confer with
4 Plaintiffs regarding the impropriety of the special interrogatories and responding to this discovery
5 motion. The Court agrees sanctions are appropriate and that the amount sought is reasonable.
6 However, the Court concludes Ken Carlson should be solely responsible for paying this sanction.

7 “To the extent authorized by the chapter governing any particular discovery method or any
8 other provision of this title, the court, after notice to any affected party, person, or attorney, and
9 after opportunity for hearing, may impose. . . sanctions against *anyone* engaging in conduct that is a
10 misuse of the discovery process.” (Code Civ. Proc. § 2023.030 (emphasis added).) This includes “a
11 monetary sanction ordering that one engaging in the misuse of the discovery process, **or any**
12 **attorney advising that conduct**, or both pay the reasonable expenses, including attorney’s fees,
13 incurred by anyone as a result of that conduct.” (Code Civ. Proc. § 2023.030(a) (emphasis added).)

14 “Misuses of the discovery process include, but are not limited to “(a) Persisting, over
15 objection and without substantial justification, in an attempt to obtain information or materials that
16 are outside the scope of permissible discovery[;] (b) Using a discovery method in a manner that
17 does not comply with its specified procedures[;]. . . (h) Making or opposing, unsuccessfully and
18 without substantial justification, a motion to compel or to limit discovery[; and]. . . (i) Failing to
19 confer in person, by telephone, or by letter with an opposing party or attorney in a reasonable and
20 good faith attempt to resolve informally any dispute concerning discovery, if the section governing
21 a particular discovery motion requires the filing of a declaration stating facts showing that an
22 attempt at informal resolution has been made.” (Code Civ Proc § 2023.010.)

23 It is clear Ken Carlson devised this discovery strategy and implemented it. Mr. Carlson’s
24 position that he is not counsel of record in this case and therefore cannot be subject to sanctions is
25 not supported by statute, case law, or the evidence on this record. That position is also contrary to
26 the California ethical rules of conduct.

27 Accordingly, attorney Ken Carlson is ordered to appear on May 8, 2025 in department 6 at 9
28 a.m. and show cause why \$2,475 in sanctions should not be imposed against him alone for abuse of

1 the discovery process.

2 **IV. Whether Defendant's Motion for Sanctions Constitutes an Appearance**

3 On March 20, 2025, Defendant filed "Hitchcock's notice of special appearance in connection
4 with opposition to plaintiff's motion to compel responses to special interrogatories; request for
5 award of sanctions for discovery abuse and for order to show cause to attorney Ken Carlson why he
6 should not be held jointly and severally liable with plaintiffs for such sanctions". In this filing,
7 Defendants state:

8 PLEASE TAKE NOTICE THAT Defendant Marie A. Hitchcock, alleged
9 Trustee of The Marie Hitchcock Marital Trust Created Under The
10 Hitchcock Living Trust Dated April 24, 2000 dba "The John C. Hitchcock
11 Family Trust" and "John C. Hitchcock Family Trust Created Under The
12 Hitchcock Living Trust Dated April 24, 2000," specially appearing and not
13 submitting to the jurisdiction of this court; has filed a motion to quash
14 summons and attempted February 21, 2025 service thereof. That motion
15 is currently pending before the court.

16 Consequently, the filing of this opposition and sanctions request does not
17 constitute a general appearance that would waive Hitchcock's
18 jurisdictional defenses to this action. (CCP §418.10(e)(1) [no act by a
19 party who files a motion to quash constitutes an appearance, unless the
20 court denies the motion to quash, in which case the defendant is not
21 deemed to have generally appeared until entry of the order denying the
22 motion to quash].)

23 "[A] statement that an appearance is special is not conclusive on the issue. Whether an
24 appearance is general or special is determined by the character of the relief sought and not by the
25 intention of the party that it shall or shall not operate as a general or special appearance."
26 (*Sunrise Financial, LLC v. Superior Court* (2019) 32 Cal.App.5th 114 [internal citations and
27 quotations omitted].) Thus, in *Sunrise Financial*, for example, defendants' opposition to a motion to
28 transfer constituted a general appearance even though they stated they were specially appearing to

1 oppose the motion because the defendants were asking the court to exercise its authority not to
2 transfer and consolidate two cases pending in different counties. (*Id.*) However, moving for
3 attorneys' fees incurred in connection with a motion to quash is not a general appearance. (*See, e.g.,*
4 *Shisler v. Sanfer Sports Cars, Inc.* (2008) 167 Cal.App.4th 1; *Berard Construction Co. v. Municipal*
5 *Court* (1975) 49 Cal.App.3d 710, 715–716.)

6 *Dial 800 v. Fesbinder* (2004) 118 Cal.App.4th 32 provides a useful summary of California law
7 on this issue:

8 Section 410.50, subdivision (a) provides in part, “A general appearance
9 by a party is equivalent to personal service of summons on such
10 party.” (*Hamilton v. Asbestos Corp.* (2000) 22 Cal.4th 1127, 1147 [95
11 Cal. Rptr. 2d 701, 998 P.2d 403]; *Fireman's Fund Ins. Co. v. Sparks*
12 *Construction, Inc.* (2004) 114 Cal.App.4th 1135, 1145 [8 Cal. Rptr. 3d
13 446];) Thus, the Courts of Appeal have explained: “A general
14 appearance operates as a consent to jurisdiction of the person,
15 dispensing with the requirement of service of process, and curing
16 defects in service.’ (2 Witkin, Cal. Procedure (4th ed. 1996) Jurisdiction,
17 § 190, p. 756.)” (*Fireman's Fund Ins. Co. v. Sparks Construction, Inc.,*
18 *supra*, 114 Cal.App.4th at p. 1145; see also *Security Loan and Trust*
19 *Company of Southern California v. Boston and South Riverside Fruit*
20 *Company* (1899) 126 Cal. 418, 422 [58 P. 941]; *In re Marriage of*
21 *Torres* (1998) 62 Cal.App.4th 1367, 1381 [73 Cal. Rptr. 2d 344]; 2
22 Witkin, Cal. Procedure (4th ed. 1996) Jurisdiction, § 199, pp. 764–
23 765.) Section 1014 states, “A defendant appears in an action when the
24 defendant answers, demurs, files a notice of motion to strike, files a
25 notice of motion to transfer pursuant to Section 396b, ... gives the
26 plaintiff written notice of appearance, or when an attorney gives notice
27 of appearance for the defendant.” The statutory list contained in
28 section 1014 of what constitutes an appearance is not exclusive. A

1 general appearance occurs when the defendant takes part in the action
2 or in some manner recognizes the authority of the court to
3 proceed. (*Hamilton v. Asbestos Corp., Ltd., supra*, 22 Cal.4th at p. 1147;
4 *Sanchez v. Superior Court* (1988) 203 Cal. App. 3d 1391, 1397 [250 Cal.
5 Rptr. 787].)

6
7 If the defendant confines its participation in the action to objecting to
8 lack of jurisdiction over the person, there is no general
9 appearance. (*People v. Ciancio* (2003) 109 Cal.App.4th 175, 192 [134
10 Cal. Rptr. 2d 531]; *In re Marriage of Torres, supra*, 62 Cal.App.4th at p.
11 1381.) However, a party who seeks relief on any basis other than a
12 motion to quash for lack of personal jurisdiction will be deemed to have
13 made a general appearance and waived all objections to defects in
14 service, process, or personal jurisdiction. (*Greener v. Workers' Comp.*
15 *Appeals Bd., supra*, 6 Cal.4th at p. 1037; *California Dental Assn. v.*
16 *American Dental Assn.* (1979) 23 Cal.3d 346, 352 [152 Cal. Rptr. 546,
17 590 P.2d 401]; *Tsakos Shipping & Trading, S.A. v. Juniper Garden Town*
18 *Homes, Ltd.* (1993) 12 Cal.App.4th 74, 89 [15 Cal. Rptr. 2d 585]; *Terzich*
19 *v. Medak* (1978) 78 Cal. App. 3d 636, 639 [144 Cal. Rptr. 323].)

20
21 The Courts of Appeal have described the scope of actions in the
22 litigation process which constitute a general appearance as follows: "A
23 general appearance occurs where a party, either directly or through
24 counsel, participates in an action in some manner which recognizes the
25 authority of the court to proceed. It does not require any formal or
26 technical act. (*Sanchez v. Superior Court*[, *supra*,] 203 Cal. App. 3d [at p.]
27 1397 ... ; *Creed v. Schultz* (1983) 148 Cal. App. 3d 733, 740 [196 Cal.
28 Rptr. 252]; see also Code Civ. Proc., § 1014.) 'If the defendant "raises

1 any other question, or asks for any relief which can only be granted upon
2 the hypothesis that the court has jurisdiction of his person, his
3 appearance is general" [Citation.]" (*California Overseas*
4 *Bank v. French American Banking Corp.* (1984) 154 Cal. App. 3d 179,
5 184 [201 Cal. Rptr. 400].)" (*Mansour v. Superior Court* (1995) 38
6 Cal.App.4th 1750, 1756–1757 [46 Cal. Rptr. 2d 191], italics
7 added.) Thus, if a defendant seeks any affirmative relief on the merits,
8 the application may be deemed a general appearance. (*In re Marriage*
9 *of Torres, supra*, 62 Cal.App.4th at p. 1381; *Tsakos Shipping & Trading,*
10 *S.A. v. Juniper Garden Town Homes, Ltd., supra*, 12 Cal.App.4th at p. 89.)

11
12 In that respect, California courts have found that parties have generally
13 appeared under varying circumstances in which the defendants sought
14 affirmative relief. (*Greene v. Committee of Bar Examiners* (1971) 4
15 Cal.3d 189, 200 [93 Cal. Rptr. 24, 480 P.2d 976] [party appears by filing
16 deposition and asking to be admitted to practice law]; *Lacey v.*
17 *Bertone* (1949) 33 Cal.2d 649, 651–652 [203 P.2d 755] [motion for
18 dissolution or modification of injunction]; *In re Marriage of*
19 *Torres, supra*, 62 Cal.App.4th at p. 1381 [wife seeking financial
20 assistance by way of support order generally appeared]; *Mansour v.*
21 *Superior Court, supra*, 38 Cal.App.4th at pp. 1756–1757 [general
22 appearance found where attorney issued deposition subpoenas in
23 order to depose two doctors on issues unrelated to jurisdiction]; *Alioto*
24 *Fish Co. Ltd. v. Alioto* (1994) 27 Cal.App.4th 1669, 1688–1689 [34 Cal.
25 Rptr. 2d 244] [filing oppositions on the merits to fee and receiver
26 orders as well as a sanctions motion constituted general
27 appearance]; *Tsakos Shipping & Trading, S.A. v. Juniper Garden Town*
28 *Homes, Ltd., supra*, 12 Cal.App.4th at p. 89 [attorney filed answer

1 and took part in proceedings]; *In re Matthew B.* (1991) 232 Cal. App. 3d
2 1239, 1270–1271 [284 Cal. Rptr. 18] [addressing the merits of
3 paternity issue as well as execution of stipulation for entry of judgment
4 and to modify child or family support constituted a general
5 appearance]; 366-386 *Geary St., L.P. v. Superior Court* (1990) 219 Cal.
6 App. 3d 1186, 1194 fn. 2 [268 Cal. Rptr. 678] [seeking and obtaining
7 order continuing a hearing is a general appearance]; *Rhyne v. Municipal*
8 *Court* (1980) 113 Cal. App. 3d 807, 815–816 [170 Cal. Rptr. 312] [filing
9 a demurrer and a motion to continue]; *Kriebel v. City Council of the City*
10 *of San Diego* (1980) 112 Cal. App. 3d 693, 699–700 [169 Cal. Rptr. 342]
11 [either filing a written stipulation extending time or an answer
12 constituted a general appearance]; *RCA Corp. v. Superior Court* (1975)
13 47 Cal. App. 3d 1007, 1009 [121 Cal. Rptr. 441] [a written stipulation
14 extending time “within which to appear”]; *Chitwood v. County of Los*
15 *Angeles* (1971) 14 Cal. App. 3d 522, 527–528 [92 Cal. Rptr. 441]
16 [defendant generally appeared when it filed, in its own name,
17 interrogatories which would only be appropriate if it was appearing as
18 a fictitious defendant]; *Knoff v. City & County of San Francisco* (1969) 1
19 Cal. App. 3d 184, 201 [81 Cal. Rptr. 683] [continuance motion]; *O’Keefe*
20 *v. Miller* (1965) 231 Cal. App. 2d 920, 922–926 [42 Cal. Rptr. 343] [filing
21 stipulation, pleadings, and points and authorities in support of motion
22 for an order to continue pretrial conference and trial constituted
23 general appearance]; *Estate of Elftman* (1958) 160 Cal. App. 2d 10, 12
24 [324 P.2d 977] [attorney appearance at hearing can result in general
25 appearance]; *Wilson v. Barry* (1951) 102 Cal. App. 2d 778, 781 [228
26 P.2d 331] [executing affidavit in support of a motion for summary
27 judgment made on behalf of himself and other defendants for whom
28 the attorney allegedly was unauthorized to act].) A court is thus

required to analyze the defendant's papers to determine if any affirmative relief could be granted on the merits, which is a general appearance. This is distinguished from a mere request for a dismissal based on a statutory provision, which is not a general appearance. (*Berard Construction Co., Inc. v. Municipal Court* (1975) 49 Cal. App. 3d 710, 713-720 [122 Cal. Rptr. 825] [statutory motion to dismiss on ground of inconvenient forum]; *Brock v. Fouchy* (1946) 76 Cal. App. 2d 363, 370 [172 P.2d 945].)

(*Dial 800 v. Fesbinder* (2004) 118 Cal.App.4th 32.) These cases make clear that a motion to quash is not a magic shield that prevents any action taken by a defendant from being a general appearance. However, opposing this motion to compel and seeking monetary sanctions for having to do so is not a general appearance. If this discovery had been served in connection with a motion to quash, Defendants would clearly have been able to seek relief from responding to it. (*1880 Corp. v. Superior Court of San Francisco* (1962) 57 Cal.2d 840 (“we hold that objections to interrogatories upon the ground they are oppressive, made during the pendency of a motion to quash, do not constitute a general appearance.”)) It would be an absurd result to find differently here.

Thus, the Court finds Defendants’ request for sanctions is not a general appearance based on the facts of this case.

The Court is aware that there is a motion to quash scheduled for hearing on June 3, 2025, and that Defense counsel will accept service if Plaintiffs agree to limit recovery to Hitchcock’s \$300,000 insurance policy. Although the Court does not currently have jurisdiction over Hitchcock and thus cannot order her to do so, the Court would like to see the parties attend a judicial mediation with Judge JoAnne McCracken and requests the parties be prepared to discuss this possibility during the hearing.

IT IS SO ORDERED.

Date: _____

Hon. Evette D. Pennypacker
Santa Clara Superior Court Judge

Line 6

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF SANTA CLARA**

SANDRA DIAZ-KELLY AND JULIAN KELLY,

Plaintiffs,

v.

FLOWERS BAKING CO. OF MODESTO, LLC
AND DOES 1 TO 50,

Defendants.

Case No. 24CV434653

**ORDER GRANTING DEFENDANT'S
MOTIONS TO COMPEL RESPONSES TO
WRITTEN DISCOVERY AND TO DEEM
MATTERS IN REQUESTS FOR
ADMISSION ADMITTED**

Defendant Flowers Banking Co. of Modesto, LLC's motion to compel Plaintiffs' responses to written discovery requests and motion to have matters in requests for admission be deemed admitted came on for hearing before the Court on April 3, 2025. Pursuant to California Rule of Court 3.1308, the Court issued its tentative ruling on April 2, 2025.

Notice of these motions was served on Plaintiffs by electronic mail on February 28, 2025. Plaintiffs failed to oppose the motions. "[T]he failure to file an opposition creates an inference that the motion or demurrer is meritorious." (*Sexton v. Super Ct.* (1997) 58 Cal.App.4th 1403, 1410.) There is also good cause to grant these motions.

Defendant served form interrogatories (set one), special interrogatories (set one), requests for admission (set one), and requests for production of documents (set one) on October 22, 2024.